

Stereo. HCJDA 38
Judgment Sheet
IN THE LAHORE HIGH COURT, LAHORE.
JUDICIAL DEPARTMENT

Writ Petition No.10392 of 2014

Wali Rehman
Versus
The Additional Commissioner (Revenue) etc.

=====

JUDGMENT

Date of Hearing:-	01.06.2021
Petitioner by:-	Sayyid Ali Imran Rizvi, Advocate.
Respondents by:-	Mr. Asif Mahmood Cheema, Addl. Advocate General.

CH. MUHAMMAD IQBAL, J:- Through this writ petition, the petitioner has challenged the vires of order dated 08.02.2014 passed by the Addl. Commissioner (Revenue), Gujranwala Division, Gujranwala (Camp at Narowal) who dismissed the objection petition of the petitioner.

2. Brief facts of the case are that the District Housing Committee, Narowal in its meeting held on 17.05.2006 selected a site for establishment of an “Area Development Scheme” and a Notification under Section 4 of the Land Acquisition Act, 1894 was published on 01.09.2006 for acquisition of land measuring 52-Acres, 04-Kanals & 03-Marlas situated in Mouzas Jamman Chandowal & Bhola Bajwa, Tehsil & District Narowal. After holding of preliminary investigation, notification under Section 17(4) & 6 of the Act ibid in respect of above said land was also published on 02.08.2007 whereafter another notification under

Section 17 (4) & 6 of the Act ibid was published on 06.12.2007 whereby the area of land was reduced to 51-Acres, 07-Kanals & 02-Marlas. Petitioner then filed application dated 05.01.2008 for exclusion of his land situated in Mouza Jamman Chandowal on the ground of being a constructed house. The Board of Revenue vide letter dated 09.01.2008 directed the District Officer (Revenue), Narowal to review the whole matter keeping in view the availability of constructed land at the location. In compliance of the directions, the matter was reviewed by the District Officer (Revenue) who vide corrigendum notification dated 30.04.2008 excluded built up area measuring 32-Kanals from the scheme.

Petitioner filed another application dated 01.03.2012 for exclusion of land measuring 01-Kanal 04-Marlas comprising Khasra No.120-min on the ground of being a constructed area. The said application was dismissed by the Board of Revenue vide order dated 16.08.2012. Against the said order, the petitioner filed Writ Petition No.21289/2012 which was disposed of by this Court vide order dated 05.09.2012 with the direction to the Senior Member Board of Revenue to decide the matter afresh after hearing the parties. In compliance of direction of this Court, the Senior Member/Member (Revenue), Board of Revenue, Punjab vide order dated 05.04.2013 remanded the matter to the Commissioner, Gujranwala Division for fresh decision within a period of two months. In post-remand proceedings, the Addl. Commissioner (Revenue), Gujranwala Division, Gujranwala (Camp at Narowal)

vide order dated 08.02.2014 dismissed the objection petition of the petitioner. Hence, this writ petition.

3. I have heard the arguments advanced by the learned counsels for the parties at full length and gone through the record with their able assistance.

4. As per record, the petitioner purchased the land measuring 04-Kanals 08-Marlas through mutation Nos.774 & 775 on 11.09.2009 out of Khewat No.49 and Khasra No.120 (8-Kanals) is included in Khewat No.49 which is a joint holding of 47 co-owners during the acquisition proceedings, as such, the main question involved in the instant case is whether after the issuance of notifications under Sections 4, 17(4) & 6 of the Land Acquisition Act, a subsequent purchaser from acquired land, can challenge the acquisition proceedings. To answer this question, it is appropriate to discuss the aforesaid provisions of law which deal with the land acquisition process. For ready reference, these provisions are reproduced as under:-

“4. Publication of preliminary notification and powers of officers thereupon.- (1) Whenever it appears to the Provincial Government that land in any locality is needed or is likely to be needed for any public purpose, a notification to that effect shall be published in the official Gazette, and the Collector shall cause public notice of the substance of such notification to be given at convenient places in the said locality.

(2) Thereupon it shall be lawful for any officer, either generally or specially authorised by such Government in this behalf, and for his servants and workmen,--
to enter upon and survey and take levels of any land in such locality;
to dig or bore into the sub-soil;
to do all other acts necessary to ascertain whether the land is adapted for such purpose;

to set out the boundaries of the land proposed to be taken and the intended line of the work (if any) proposed to be made thereon;

to mark such levels, boundaries and the line by placing marks and cutting trenches; and

where otherwise the survey cannot be completed and the levels taken and the boundaries and lines marked, to cut down and clear away any part of any standing crop, fence or jungle:

Provided that no person shall enter into any building or upon any enclosed Court or garden attached to a dwelling-house unless with the consent of the occupier thereof without previously giving such occupier at least seven days' notice in writing of his intention to do so.

[Provided further that entire process of land acquisition shall be completed within a period of one year failing which the notification made under sub-section (1) shall stand revoked.]

6. Declaration that land is required for a public purpose.—

(1) Subject, to the provisions of Part VII of this Act, when the Commissioner is satisfied, after considering the report, if any, made under section 5-A, sub-section (2), that any particular land is needed for a public purpose, or for a Company, a declaration shall be made to that effect under the signature of a Secretary to such Government or of some officer duly authorised to certify its order:

Provided that no such declaration shall be made unless the compensation to be awarded for such property is to be paid by a Company, or wholly or partly out of public revenues or some fund controlled or managed by a local authority.

(2) The declaration shall be published in the official Gazette, and shall state the district or other territorial division in which the land is situate, the purpose for which it is needed, its approximate area, and, where a plan shall have been made of the land, the place where such plan may be inspected.

(3) The said declaration shall be conclusive evidence that the land is needed for a public purpose or for a Company, as the case may be; and, after making such declaration, the [Provincial Government] may acquire the land in manner hereinafter appearing.

17. Special power in cases of urgency.— (1) In cases of urgency, whenever the [Provincial Government] so directs, the Collector, though no such award has been made, may, on the expiration of fifteen days from publication of the notice mentioned in section 9 of sub-section (1), take possession of any waste or arable land needed for public purposes or for a Company. Such land shall thereupon vest absolutely in the Government, free from all encumbrances:

(2) Whenever, owing to any sudden change in the channel of any navigable river or other unforeseen emergency, it becomes necessary for any Railway Administration to acquire the immediate possession of any land for the maintenance of their traffic or for the purpose of making thereon a river-side or ghat station, or of providing convenient connection with or access to any such station, the Collector may, immediately after the

publication of the notice mentioned in sub-section (1) and within the previous sanction of the [Provincial Government] enter upon and take possession of such land, which shall thereupon [vest absolutely in the [Government]] free from all encumbrances:

Provided that the Collector shall not take possession of any building or part of a building under this sub-section without giving to the occupier thereof at least forty-eight hours notice of his intention so to do, or such longer notice as may be reasonably sufficient to enable such occupier to remove his movable property from such building without unnecessary inconvenience.

(3) In every case under either of the preceding sub-sections the Collector shall at the time of taking possession offer to the persons interested compensation for the standing crops and trees (if any) on such land and for any other damage sustained by them caused by such sudden dispossession and not excepted in section 24; and, in case such offer is not accepted, the value of such crops and trees and the amount of such other damage shall be allowed for in awarding compensation for the land under the provisions herein contained.

(4) In the case of any land to which, in the opinion of the [Provincial Government], the provisions of sub-section (1) or sub-section (2) are applicable, the Provincial Government may direct that the provisions of section 5-A shall not apply, and, if it does so direct, a declaration may be made under section 6 in respect of the land at any time after the publication of the notification under section 4 of sub-section (1)."

(emphasis supplied)

5. The object of Notification under Section 4 of the Act is to disclose the intention and need of the Govt. and also to give notice to public at large that land subject matter of Notification is required for public purposes. The Notification under the above provision is merely an introductory measure, tentative in nature and furnishes the foundation of carrying out the subsequent proceedings of acquisition as well as it is amounting to a cautioning the public that any transaction/alienation made subsequent to the issuance of notification would be at the risk and cost of the respective parties as held by this Court in a judgment cited as Messrs Eden Developers (Pvt.) Limited Vs. Government of the Punjab and others (PLD 2017 Lahore 442). Further the said Notification empowers the officer concerned to carry on preliminary

investigation in order to reach the final conclusion whether said land is required for the public purpose or otherwise. Through Notification under Section 4 of the Act *ibid* only the primary tentative intention of the Government is expressed and it could not be considered as conclusive / ultimate decision of the government rather it is a precautionary notice/warning to the public at large. Reliance is also placed on a case cited as *Sardar Dildar Ahmad Cheema Vs. Board of Revenue, Punjab through Member (Revenue) and others* (PLD 2013 Lahore 565) wherein it is held as under:-

“11. It is settled principle of law that purpose of issuance of Notification under Section 4 of the Act of 1894 is to give a notice to the public at large that land subject matter of the notification is required for a public purpose, and it further means that there will be “an impediment to any one to encumber the land acquired thereunder”, this mean any encumbrance created after the gazette notification, all encumbrances will be void against the State.....”

6. The issuance of notification under Section 6 of Act *ibid* is a conclusive declaration that the land is needed for public purpose and the object of the Section 17 of the Act *ibid* is to allow an authority to proceed with the matter without waiting completion of other formalities. Once possession of the land is taken under Section 17 of the Act *ibid*, whereafter the title of the land for all intents and purposes vests free from all encumbrances in the name of the government and the ownership of the previous proprietor by operation of law stand ceased / extinguished whereafter the land owner was stripped off from the legal authority / right to make any transaction of the said acquire land and any person who purchases the acquired land during or after the acquisition proceedings is debarred to challenge the acquisition proceedings and if any

sale/alienation of the land so acquired is executed that would be void and non-existence in the eyes of law. Reliance in this regard is placed on a recent case law rendered by the Supreme Court of India cited as Shiv Kumar and Ors. Vs. Union of India (UOI) and Ors. (AIR 2019 SC 5374) the relevant portion whereof is reproduced as under:

6. First, we advert to the legal position concerning the purchases made on 5.7.2001, made after notification under Section 4 had been issued under the Act of 1894. Law is well settled in this regard by a catena of decisions of this Court that an incumbent, who has purchased the land after section 4 notification, has no right to question the acquisition.

6(a). In U.P. Jal Nigam, Lucknow through its Chairman & Anr. v. Kalra Properties (P) Ltd., Lucknow & Ors. (1996) 3 SCC 124 it was observed :

3. ...That apart, since M/s. Kalra Properties, the respondent had purchased the land after the notification under Section 4(1) was published, its sale is void against the State, and it acquired no right, title, or interest in the land. Consequently, it is settled law that it cannot challenge the validity of the notification or the regularity in taking possession of the land before the publication of the declaration under Section 6 was published."

6(b). In Sneh Prabha (Smt.) & Ors. v. State of U.P. & Anr. (1996) 7 SCC 426 it has been laid down that subsequent purchaser cannot take advantage of land policy. It was observed:

"5. Though at first blush, we were inclined to agree with the appellant but on a deeper probe, we find that the appellant is not entitled to the benefit of the Land Policy. It is settled law that any person who purchases land after the publication of the notification under Section 4(1), does so at his/her peril. The object of publication of the notification under Section 4(1) is notice to everyone that the land is needed or is likely to be needed for a public purpose, and the acquisition proceedings point out an impediment to anyone to encumber the land acquired thereunder. It authorizes the designated officer to enter upon the land to do preliminaries, etc. Therefore, any alienation of land after the publication of the notification under Section 4(1) does not bind the Government or the beneficiary under the acquisition. On taking possession of the land, all rights, titles, and interests in land stand vested in the State, under Section 16 of the Act, free from all encumbrances, and thereby, absolute title in the land is acquired thereunder. If any subsequent purchaser acquires land, his/her only right would be subject to the

provisions of the Act and/ or to receive compensation for the land. In a recent judgment, this Court in Union of India v. Shri Shivkumar Bhargava and Ors. [1995] 1 SCR 354 considered the controversy and held that a person who purchases land subsequent to the notification is not entitled to an alternative site. It is seen that the Land Policy expressly conferred that right only on that person whose land was acquired. In other words, the person must be the owner of the land on the date on which notification under Section 4(1) was published. By necessary implication, the subsequent purchaser was elbowed out from the policy and became disentitled to the benefit of the Land Policy."

6(c). In Meera Sahni v. Lieutenant Governor of Delhi & Ors. (2008) 9 SCC 177, the Court had relied upon the decision described above and observed thus:

"21. In view of the aforesaid decisions, it is by now well-settled law that under the Land Acquisition Act, the subsequent purchaser cannot challenge the acquisition proceedings and that he would be only entitled to get the compensation."

6(d). In V. Chandrasekaran & Anr. v. Administrative Officer & Ors. (2012) 12 SCC 133, the Court has considered various decisions and opined that the purchaser after Section 4 notification could not challenge land acquisition on any ground whatsoever. The Court observed:

"15. The issue of maintainability of the writ petitions by the person who purchases the land subsequent to a notification being issued under Section 4 of the Act has been considered by this Court time and again. In Leela Ram v. Union of India AIR 1975 SC 2112, this Court held that anyone who deals with the land subsequent to a Section 4 notification being issued, does so, at his own peril. In Sneh Prabha v. State of Uttar Pradesh AIR 1996 SC 540, this Court held that a Section 4 notification gives a notice to the public at large that the land in respect to which it has been issued, is needed for a public purpose, and it further points out that there will be "an impediment to anyone to encumber the land acquired thereunder." The alienation after that does not bind the State or the beneficiary under the acquisition. The purchaser is entitled only to receive compensation. While deciding the said case, reliance was placed on an earlier judgment of this Court in Union of India v. Shiv Kumar Bhargava and Ors. (1995) 2 SCC 427.

18. In view of the above, the law on the issue can be summarized to the effect that a person who purchases land subsequent to the issuance of a Section 4 notification with respect to it, is not competent to challenge the validity of the acquisition proceedings on any ground whatsoever, for the reason that the sale deed executed in his favour does not confer upon him, any title and at the most he can claim compensation on the basis of his vendor's title. (emphasis supplied)

6(e). In Rajasthan State Industrial Development and Investment Corpn. v. Subhash Sindhi Cooperative Housing Society, Jaipur & Ors. (2013) 5 SCC 427, it is laid down:

13. There can be no quarrel with respect to the settled legal proposition that a purchaser, subsequent to the issuance of a Section 4 Notification in respect of the land, cannot challenge the acquisition proceedings, and can only claim compensation as the sale transaction in such a situation is Void qua the Government. Any such encumbrance created by the owner, or any transfer of the land in question that is made after the issuance of such a notification would be deemed to be void and would not be binding on the Government. (Vide: Gian Chand v. Gopala and Ors. (1995) 2 SCC 528; Yadu Nandan Garg v. State of Rajasthan and Ors. AIR 1996 SC 520; Jaipur Development Authority v. Mahavir Housing Coop. Society, Jaipur, and Ors. (1996) 11 SCC 229; Secretary, Jaipur Development Authority, Jaipur v. Daulat Mal Jain and Ors. (1997) 1 SCC 35; Meera Sahni v. Lieutenant Governor of Delhi and Ors. (2008) 9 SCC 177; Har Narain (Dead) by L.Rs. v. Mam Chand (Dead) by L.Rs. and Ors. (2010) 13 SCC 128; and V. Chandrasekaran and Anr. v. The Administrative Officer and Ors. JT 2012 (9) SC 260)."

(emphasis supplied)

6(f). A Three-Judge Bench in Rajasthan Housing Board v. New Pink City Nirman Sahkari Samiti Ltd. & Anr., (2015) 7 SCC 601, in the context of section 4 as well as section 42 of the Rajasthan Tenancy Act which also prohibited the transactions from being entered into with SC/ST persons, has observed:

33. The other decision relied upon by the Society is V. Chandrasekaran and Anr. v. Administrative Officer and Ors. 2012 (12) SCC 133] wherein this Court laid down thus:

17. In Ajay Kishan Singhal v. Union of India: AIR 1996 SC 2677; Mahavir and Anr. v. Rural Institute, Amravati and Anr. (1995) 5 SCC 335; Gian Chand v. Gopala and Ors. (1995) 2 SCC 528; and Meera Sahni v. Lieutenant Governor of Delhi and Ors. (2008) 9 SCC 177, this Court categorically held that a person who purchases land after the publication of a Section 4 notification with respect to it, is not entitled to challenge the proceedings for the reason, that his title is void and he can at best claim compensation on the basis of vendor's title. In view of this, the sale of land after issuance of a Section 4 notification is void, and the purchaser cannot challenge the acquisition proceedings. (See also: Tika Ram v. the State of U.P. (2009) 10 SCC 689).

18. In view of the above, the law on the issue can be summarized to the effect that a person who

purchases land subsequent to the issuance of a Section 4 notification with respect to it, is not competent to challenge the validity of the acquisition proceedings on any ground whatsoever, for the reason that the sale deed executed in his favour does not confer upon him, any title and at the most he can claim compensation on the basis of his vendor's title.

34. Reliance has been placed on Dossibai Nanabhoy Jeejeebhoy v. P.M. Bharucha 1958 (60) Bom.LR 1208] so as to contend that the 'person interested' in the land under Section 9 of the Land Acquisition Act would include a person who claims interest in compensation to be paid on account of acquisition of land and the interest contemplated Under Section 9 is not restricted to legal or proprietary estate or interest in the land but such interest as will sustain a claim to apportionment, is the owner of the land. In our opinion, the decision is of no avail. The instant transaction being void as per Section 42 of the Rajasthan Tenancy Act, and the property was inalienable to non-SC. Obviously, the logical corollary has to be taken that no right in apportionment to compensation can be claimed by the Society."

6(g). In *M. Venkatesh & Ors. v. Commissioner, Bangalore Development Authority, etc.* (2015) 17 SCC 1, a three Judge Bench has opined:

"16. That brings us to the question of whether Prabhaudas Patel and other respondents in SLP (C) No.12016 of 2013 were entitled to any relief from the Court. These respondents claim to have purchased the suit property in terms of a sale deed dated 22-8-1990, i.e., long after the issuance of the preliminary Notification published in July 1984. The legal position about the validity of any such sale, post-issuance of preliminary notification, is fairly well settled by a long line of the decisions of this Court. The sale in such cases is void and non-est in the eye of the law giving to the vendee the limited right to claim compensation and no more. Reference may in this regard be made to the decision of this Court in *U.P. Jal Nigam v. Kalra Properties (P) Ltd*, wherein this Court said: (SCC pp. 126-27, para 3)

"3. ... It is settled law that after the notification under Section 4(1) is published in the gazette, any encumbrance created by the owner does not bind the Government, and the purchaser does not acquire any title to the property. In this case, Notification under Section 4(1) was published on 24-3-1973; possession of the land admittedly was taken on 5-7-1973, and the pumping station house was constructed. No doubt, declaration under Section 6 was published later on 8-7-1973. Admittedly power under Section 17(4) was exercised dispensing with the inquiry under Section 5-A and on service of the notice under

Section 9 possession was taken, since urgency was acute viz. pumping station house was to be constructed to drain out floodwater. Consequently, the land stood vested in the State under Section 17(2) free from all encumbrances. It is further settled law that once possession is taken, by operation of Section 17(2), the land vests in the State free from all encumbrances unless a notification under Section 48(1) is published in the gazette withdrawing from the acquisition. Section 11-A, as amended by Act 68 of 1984, therefore, does not apply, and the acquisition does not lapse. The notification under Section 4(1) and the declaration under Section 6, therefore, remain valid. There is no other provision under the Act to have the acquired land divested, unless, as stated earlier, notification under Section 48(1) was published, and the possession is surrendered pursuant thereto. That apart, since M/s Kalra Properties, the respondent had purchased the land after the notification under Section 4(1) was published, its sale is void against the State, and it acquired no right, title, or interest in the land. Consequently, it is settled law that it cannot challenge the validity of the notification or the regularity in taking possession of the land before the publication of the declaration under Section 6 was published.

(emphasis supplied)"

7. It has been laid down that the purchasers on any ground whatsoever cannot question proceedings for taking possession. A purchaser after Section 4 notification does not acquire any right in the land as the sale is ab initio void and has no right to claim land under the Policy.

7. As per available record, notification under Section 4 of the Land Acquisition Act, 1894 was issued on 22.08.2006 [published on 01.09.2006] to acquire land measuring 52-Acres, 04-Kanals & 03-Marlas including Khasra No.120 measuring 08-Kanals situated in Mouzas Jamman Chandowal & Bhola Bajwa, Tehsil & District Narowal for public purpose. Notification under Section 17(4) & 6 of the Act *ibid* was published on 02.08.2007 whereafter a corrigendum notification under Section 17 (4) & 6 of the Act *ibid* was published on 06.12.2007. The award of the acquired land was

announced on 26.11.2009 whereafter land stood vest in the perpetual ownership of the acquiring department / the Agency and acquiring agency as well as the land acquisition collector are placed under mandatory obligation to get updated the revenue record accordingly to protect its title as well as to save the prospective innocent purchaser from the element of the fraud. Beside above the ex-land owner are also stand denuded of any title to alienate or encumber the said land and any such transaction of sale purchase made after issuance of notification under section 4 as well as notification under section 6 & 17(4) of the Act ibid that transaction would be nullity in the eyes of law. Admittedly the petitioner purchased land measuring 04 Kanal 08 Marla through mutation Nos.774 & 775 on 11.09.2009 from the joint Khata and the land measuring 08 Kanal falls in Khasra No.120 Khewat No.49. The petitioner intentionally and deliberately purchased the land out of Khewat No.49 on 11.09.2009 whereas the acquisition proceedings had already been initiated on 01.09.2006 through publication of notification under Section 4 of the Act ibid as well as subsequent notification under Section 6 & 17(4) of the Act ibid on 02.08.2008 and the title of land had already stood vested in favour of the acquiring department and said acquired land could not be sold out through private treaty. As the notification under Section 4 of the Act ibid is a notice to the public at large that the land is required for public purpose whereafter a legal embargo is placed on the alienation of said land. As per available record, the petitioner

purchased the land after the acquisition of the land as such he has no right to question the acquisition proceedings and at the most, he has remedy to claim compensation of the land.

8. Learned counsel for the petitioner has failed to point out any perversity, illegality or any jurisdictional defect in the impugned order calling for any interference by this Court in its constitutional jurisdiction.

9. As the petitioner being a subsequent purchaser of the acquired land is debarred to challenge the acquisition proceedings. Furthermore, the petitioner during acquisition proceedings illegally encroached upon the land in question, as such, he is not entitled for any discretionary or equitable relief under Article 199 of the Constitution of the Islamic Republic of Pakistan, 1973. Resultantly, this writ petition is hereby **dismissed** being not maintainable as well as devoid of any merits.

(CH. MUHAMMAD IQBAL)
JUDGE

Approved for reporting.

(CH. MUHAMMAD IQBAL)
JUDGE